

Kothiwal Ice & Cold Storage Pvt. Ltd. v. Dakshinanchal Vidyut Vitran Nigam

High Court of Judicature at Allahabad · Division Bench · 21 March 2017 · Writ-C No. 19564 of 2010 · **Writ dismissed following connected 2016 order**

HEADNOTE

A writ challenging additional security under para 4.20 of the U.P. Electricity Supply Code, 2005 was dismissed by adopting the order of the same date in Writ-C No. 30898 of 2016. An earlier 2010 Division Bench had, without prejudice, restrained the demand pending the connected Vehina Steels batch.

FACTUAL SUMMARY

The petitioner, an ice and cold storage company, challenged Dakshinanchal Vidyut Vitran Nigam's demand of additional security under paragraph 4.20 of the U.P. Electricity Supply Code, 2005. The writ was tagged with Vehina Steels (W.P. No. 30582 of 2009) and similar petitions. On 10 May 2010 the Court restrained the respondents from demanding additional security, following the interim already granted in that batch. On 21 March 2017 the writ was dismissed by reference to the same-date order in Writ-C No. 30898 of 2016.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

additional security

HOLDING

The writ challenging the licensee's demand of additional security under para 4.20 of the U.P. Electricity Supply Code, 2005 was dismissed, the Division Bench adopting its order of the same date in Writ-C No. 30898 of 2016. ¶ 2